KODABLE PRIVACY POLICY

Last Updated: May 26, 2022

This Privacy Policy describes how SurfScore, Inc. d/b/a Kodable, and our subsidiaries and affiliated companies (collectively, "Kodable," "we," or "us") collect, use, and disclose information about you. This Privacy Policy applies to information we collect when you access or use our website, mobile applications, and other online products and services that link to this Privacy Policy (collectively, our "Services"), or when you otherwise interact with us.

We may change this Privacy Policy from time to time. If we make changes, we will notify you by revising the date at the top of this policy. We may also provide you with additional notice (such as by adding a statement to the Services or sending you a notification). We encourage you to review the Privacy Policy regularly to stay informed about our information practices and the choices available to you.

If you are a California resident, please see the "Your California Privacy Rights" section.

Children's Information

Kodable does not knowingly collect any personally identifiable information from children under 13. While our games and lessons are used by children, they do not collect any personally identifiable information, and our website **(**www.kodable.com**)**, and teacher dashboard **(**dashboard.kodable.com**)** are intended for use solely by adults **(**parents and teachers**)**.

Collection of Information

Information You Provide to Us

Students who participate in games or lessons through the Service do not directly provide us with any information. For parents, teachers, website visitors, and representatives of schools, we collect information you provide directly to us. For example, we collect information when you create or edit a teacher or parent account, sign up students, invite teachers, make an appointment, fill out a form, make a purchase or order, apply for a job, request information or customer support, subscribe to a newsletter, respond to a survey, enter a contest, or otherwise communicate with us. The types of information we may collect in connection with parent and teacher accounts include your name, email address, postal address, phone number, student information, teacher, class, or administrator information, school information, payment information, and other information you choose to provide. Additionally, if you make a purchase, we work with a third-party payment processor to collect and process your payment information.

Information We Collect Automatically When You Use the Service

When you access or use our Service, we automatically collect information about you, including:

- **Log Information:** We log information about your use of the Service, including the type of browser you use, access times, pages viewed, your IP address and the page you visited before navigating to our Service.

- **Device Information:** We collect information about the computer or mobile device you use to access our Service, including the hardware model, operating system and version, unique device identifiers, app version.

- **Progress Information:** We automatically collect information about student progress on games and lessons.

- **Information Collected by Cookies and Other Tracking Technologies:** We use various technologies to collect information, and this may include sending cookies to your computer or mobile device. Cookies are small data files stored on your hard drive or in device memory that helps us to improve our Service and your experience, see which areas and features of our Service are popular and count visits. We may also collect information using web beacons (also known as "tracking pixels"). Web beacons are electronic images that may be used in our Service or emails and help deliver cookies, count visits, understand usage and campaign effectiveness and determine whether an email has been opened and acted upon. For more information about cookies, and how to disable them, please see "Your Choices" below.

Information We Collect From Other Sources

We may also obtain information from other sources. For example, we may collect information from Student Information Systems vendors ("SIS") and other education partners, such as Google Classroom. Additionally, if you create or log into your Kodable account through a third-party platform (such as Google or Apple), we will have access to certain information from that platform, such as email address, in accordance with the authorization procedures determined by such platform.

Information We Derive

We may derive information or draw inferences about you based on the information we collect. For example, we may make inferences about your approximate location based on your IP address.

Use of Information

We may use information about you for various purposes, including to:

- Provide, maintain, and improve our Service and provide customer support;

- Provide and deliver the products and services you request, process transactions, and send you related information, including confirmations and invoices;

- Send you technical notices, updates, security alerts, and support and administrative messages;

- Respond to your comments, questions, and requests and provide customer service;

- Communicate with you about products, services, offers, promotions, rewards, and events offered by Kodable and others, and provide news and information we think will be of interest to you;

- Monitor and analyze trends, usage, and activities in connection with our Service;

- Personalize the advertisements you see for Kodable Services on third-party platforms (for more information, see the Advertising and Analytics section below)

- Detect, investigate, and prevent fraudulent transactions and other illegal activities, and protect the rights and property of Kodable and others;

- Personalize and improve the Service and provide content or features that match your interests;

- Link or combine with information we get from others to help understand your needs and provide you with better service; and

- Carry out any other purpose for which the information was collected.

Kodable is based in the United States and the information we collect is governed by U.S. law. By accessing or using the Service or otherwise providing information to us, you consent to the processing and transfer of information in and to the U.S. and other countries.

Sharing of Information

We may share information about you as follows or as otherwise described in this Privacy Policy:

- With vendors, consultants and other service providers (including SIS vendors and education partners) who assist us in providing the Service and who are given access to such information for the purpose of carrying out such work on our behalf;

- With teachers, administrators, or other school staff at your school (for teacher/school related accounts), including to alert users if there are other

users at their school, to transfer user accounts to a new teacher or school contact at your school, to share student progress information and other dashboard information, or if you link your account;

- In response to a request for information if we believe disclosure is in accordance with any applicable law, regulation or legal process, or as otherwise required by any applicable law, rule or regulation;

- If we believe your actions are inconsistent with the spirit or language of our user agreements or policies, or to protect the rights, property and safety of Kodable or others;

- In connection with, or during negotiations of, any merger, sale of company assets, financing or acquisition of all or a portion of our business to another company; and

- With your consent or at your direction, including if we notify you through our Sites that the information you provide will be shared in a particular manner and you provide such information.

We may also share aggregated or anonymized information that does not directly identify you.

Advertising and Analytics Services Provided by Others

We may allow third parties to provide analytics services, and to serve advertisements on their platforms for the Kodable Services. These entities may use cookies, web beacons, device identifiers and other technologies to collect information about your use of the Service and other websites, including your IP address, web browser, pages viewed, time spent on pages or in mobile apps, links clicked and conversion information. This information may be used by Kodable and others to, among other things, analyze and track data, determine the popularity of certain content, deliver advertising for the Kodable Services and better understand your online activity. Note that with respect to ads for Kodable Services you may see on third party platforms, the third-party platforms may offer you choices about whether you see these types of customized ads.

Security

Kodable takes reasonable measures to help protect information about you from loss, theft, misuse and unauthorized access, disclosure, alteration and destruction.

Your Choices

Account Information

You may update, correct or delete information about you at any time by logging into your online account and editing your account information (under the View Account button). If you wish to delete your account, you may do so by logging into your online account and clicking on the Delete Account button (under the View Account button). Please note that we may retain

certain information as required by law or for legitimate business purposes. We may also retain cached or archived copies of information about you for a certain period of time.

Cookies

Most web browsers are set to accept cookies by default. If you prefer, you can usually choose to set your browser to remove or reject browser cookies. Please note that if you choose to remove or reject cookies, this could affect the availability and functionality of our Service.

Promotional Communications

You may opt out of receiving promotional emails from Kodable by following the instructions in those emails. If you opt out, we may still send you non-promotional communications, such as those about your account or our ongoing business relations.

Your California Privacy Rights

The California Consumer Privacy Act or "CCPA" (Cal. Civ. Code § 1798.100 et seq.) afford consumers residing in California certain rights with respect to their personal information. If you are a California resident, this section applies to you.

California Consumer Privacy Act

In the preceding 12 months, we have collected the following categories of personal information: identifiers, commercial information, internet or other electronic activity information, general location data, professional or employment related information, and education information. For details about the precise data points we collect and the categories of sources of such collection, please see the Collection of Information section above. We collect personal information for the business and commercial purposes described in the Use of Information section above. In the preceding 12 months, we have disclosed the following categories of personal information for business purposes to the following categories of recipients:

Category of Personal Information	***Categories of Recipients***
• Identifiers (such as name and contact information) • Commercial information (such as products or orders purchased) • Internet or other electronic network activity information (such as IP address) • General geolocation data	• Operating systems and platforms • Data analytics service providers • Advertising service providers • Marketing service providers • Database storage service providers

• Professional or employment-related information • Education information (such as student information)	• Security and vulnerability service providers

Kodable does not sell your personal information.

We do not knowingly sell personal information about consumers under the age of 16.

Subject to certain limitations, you have the right to (1) request to know more about the categories and specific pieces of personal information we collect, use, and disclose, (2) request deletion of your personal information, (3) opt out of any "sales" of your personal information that may be occurring, and (4) not be discriminated against for exercising these rights. You may make these requests by calling 415-993-1020 or emailing our designated email address at privacy@kodable.com. We will verify your request by asking you to provide information related to your recent interactions with us, such as confirming the email address associated with your profile or confirming your profile username. We will not discriminate against you if you exercise your rights under the CCPA.

If we receive your request from an authorized agent and they do not provide a valid power of attorney, we may ask the authorized agent to provide proof that you gave the agent signed permission to submit the request to exercise rights on your behalf. In the absence of a valid power of attorney, we may also require you to verify your own identity directly with us or confirm to us that you otherwise provided the authorized agent permission to submit the request. If you are an authorized agent seeking to make a request, please email us at privacy@kodable.com.

Contact Us

If you have any questions about this Privacy Policy, please contact us at privacy@kodable.com.